63-608 Transitional CalFresh (Q&A)

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Transitional CalFresh Eligibility after CalWORKs Consecutive Discontinuances

QUESTION

A household's CalWORKs case discontinues. Transitional CalFresh is granted, the client reapplies for CalWORKs and CalWORKs is approved. The CalWORKs discontinues the second time. Is the household eligible for Transitional CalFresh a second time? Can we keep going back and forth between cash assistance and Transitional CalFresh? Is there a limit to how many times a client can get Transitional CalFresh?

ANSWER

Transitional CalFresh will be issued and a new five-month period will begin each time the CalWORKs cash assistance ends, if the household is receiving CalFresh in the last month of cash assistance.

There is no limit to the number of times a household can go on and off Transitional CalFresh.

ACIN I-21-04

CalWORKs Discontinued Untimely - Beginning of Transitional CalFresh

BACKGROUND:
An absent father with earnings returned to the home July 2004. The CalWORKs case would have been discontinued at the end of the payment quarter on August 31, 2004, if the information had been reported timely. When the county learned of the situation, the CalWORKs case was discontinued on November 30, 2004.

QUESTION:
In a situation in which the CalWORKs case should have been discontinued, but the client continued to receive a CalWORKs grant, will Transitional CalFresh benefits begin the month after the CalWORKs grant is actually discontinued or the month the CalWORKs grant should have been discontinued?

ANSWER:
Transitional CalFresh benefits would begin December 1st because the last month the client received a CalWORKs grant was November.

Transitional CalFresh cases begin the month following the discontinuance from CalWORKs. All Transitional CalFresh cases are to be given a five-month certification period. Workers shall not subtract time from the Transitional CalFresh case if ineligibility existed in prior months on the CalWORKs case.

ACIN I-34-05

CalWORKs Discontinuing Due to Ineligibility of the Only Child

QUESTION

The whole CalWORKs cash assistance case is discontinued due to ineligibility of the child. Is this a Transitional CalFresh case?

ANSWER

If a household loses cash benefits because it no longer includes an eligible child, they can still receive Transitional CalFresh. However, if the child receives benefits in another CalWORKs or CalFresh household, then the worker would need to remove the child from the Transitional CalFresh household. If the child's leaving results in the household member being designated as an Able Bodied Adult Without Dependent Children (ABAWD), the household is still eligible for Transitional CalFresh. The law does not require an analysis of their ABAWD status.

ACIN I-21-04

Household Member Leaving the Month after Transitional CalFresh is Granted

QUESTION

During the month cash aid is discontinued, will a household member be included in the Transitional CalFresh household if it is known to the County that the individual will not be in the home the following month?

ANSWER

Yes. Transitional CalFresh benefits are issued based on circumstances in the last month of CalWORKs eligibility. If the individual was included in the last month of CalWORKs, that individual should be included in the Transitional CalFresh household. However, if the individual applies for and is granted benefits in another CalWORKs or CalFresh household, then the worker would need to remove them from the Transitional CalFresh household.

ACIN I-21-04

CalWORKs Discontinuing at the Same Time the Child is Approved for SSI/SSP

QUESTION

A mother and child are receiving CalWORKs. The child is approved for SSI/SSP and the mother gets a job, which makes the family ineligible for CalWORKs. Is the household eligible for Transitional CalFresh? If so, for how many people?

ANSWER

The mother and the child would be eligible for Transitional CalFresh if the child was not receiving SSI/SSP in the last month the household was receiving CalWORKs. However, if the child is already receiving SSI/SSP, in the month prior to the household being discontinued from CalWORKs, the child would not be eligible for Transitional CalFresh — only the mother would be eligible.

ACIN I-21-04

CalWORKs Discontinuing Before Adding a New Person to the Assistance Unit

QUESTION

If the County is in the middle of adding a person to the CalWORKs/CalFresh household and CalWORKs is discontinued, should the new person be included in the Transitional CalFresh benefit amount?

ANSWER

No. The new person had to be part of the CalWORKs/CalFresh case at the time of discontinuance.

ACIN I-72-04

Kin-GAP Children – Transitional CalFresh Eligibility

QUESTION

A needy caretaker relative was discontinued from CalWORKs for herself and her grandchild. There are also Kin-GAP children in the home and they also receive CalFresh. Is there eligibility for Transitional CalFresh since Kin-GAP continues to be received for the children?

ANSWER

Yes, the household would receive Transitional CalFresh. Kin-GAP is funded through Title IV-E funds, unlike CalWORKs which is funded from Title IV-A funds. The Transitional CalFresh case is set up based upon the CalWORKs household discontinuance for the existing CalFresh members in the scenario. Benefits are issued in the amount of the allotment received in the last month of CalWORKs eligibility, adjusted for the change in household income as a result of termination in the CalWORKs program.

ACIN I-84-09

Child Residing with Unknown Relative (Payee) after Mother Dies

QUESTION

The CalWORKs assistance unit consisted of a mother and a minor child. The mother died and the child went to live with relatives. The relative's information is unknown. Does the County set up the Transitional CalFresh for the child only? What if the payee is unknown?

ANSWER

The Transitional CalFresh case could only be set up if there is a designated authorized representative prior to benefits being issued. The child would not be in his/her own household, therefore there would not be a Transitional CalFresh case. If the child's relatives were eligible for CalFresh, they could apply for regular CalFresh benefits.

ACIN I-72-04

Parents Sanctioned the Same Month the CalWORKs Case is Discontinued

BACKGROUND

On October 20, 2006, a worker imposed a CalWORKs/CalFresh Welfare-to-Work sanction to both parents and issued a timely 10-day notice to decrease benefits. That same night, CalWIN issued an "X" Notice of Action (NOA) for non-receipt of the QR 7. The household failed to provide the QR 7 by the extended filing date and the case was discontinued. Transitional CalFresh was issued in November 2006.

QUESTION

Are the sanctioned parents eligible to Transitional CalFresh?

ANSWER

Yes, the parents should receive Transitional CalFresh because they received CalWORKs and CalFresh in the last month of CalWORKs eligibility and the sanction had not yet been imposed (the sanction was going to take effect in November).

ACIN I-42-07

Transitional CalFresh Household Member Granted CalWORKs Only

Scenario:
The client was receiving Transitional CalFresh for herself and one child. The child was removed from the home and placed in another home. The other household applied for CalWORKs only for the child and not CalFresh. Since the child was approved for CalWORKs effective 08/08, he was removed from the Transitional CalFresh household effective 10/08.

Question:
Should the child have been removed from the Transitional CalFresh household?

Answer:
Yes. The child must be removed because the individual cannot receive CalWORKs and Transitional CalFresh at the same time. Transitional CalFresh eligibility is based upon receiving CalWORKs and regular CalFresh benefits in the last month of CalWORKs eligibility. Transitional CalFresh issuance is based upon household's terminating its participation in the CalWORKs program. Transitional CalFresh eligibility occurs when CalWORKs is terminated; receipt of CalWORKs by the Transitional CalFresh household will end Transitional CalFresh eligibility.

In this case, since a Transitional CalFresh recipient remains who is not on CalWORKs (the mother) Transitional CalFresh continues for her.

ACIN I-84-09

CalWORKs Household Reapplies and Discontinues Again before the Transitional CalFresh Case is Discontinued

CASE SCENARIO:

04/30	A household receiving Transitional CalFresh reapplies for CalWORKs
05/15	The applicant attends the CalWORKs intake interview
05/22	CalWORKs is approved with a beginning date of 04/30/07 (04/30 was the application date). Transitional CalFresh is set to discontinue 06/30
05/31	The household requests CalWORKs discontinuance
06/30	Transitional CalFresh is set to discontinue, the CalWORKs case is discontinued 06/30 due to 10-day notice requirement

QUESTION
Is the household eligible for Transitional CalFresh benefits beginning 07/01/07 after the CalWORKs discontinuance?

ANSWER
No. To be eligible to Transitional CalFresh, CalWORKs and regular CalFresh must have been issued in the month the CalFresh household loses CalWORKs. There is no Transitional CalFresh eligibility 07/01/07 because the household did not receive regular CalFresh benefits in June.

ACIN I-58-08

CalFresh Budget After Transitional CalFresh is Discontinued

CASE SCENARIO
Client applied for CalWORKs in 01/05. The first quarter is 01/05-03/05. Client had an active Transitional CalFresh case, which was discontinued on 01/31/05 because 01/05 was the fifth month. The worker approved the case in 02/05, CalWORKs effective 01/05 and Public Assistance CalFresh effective 02/05.

The client received wages in 01/05, 02/05 and was expected to receive them in 03/05 too.

She also received cash contributions in 01/05 only. She did not receive anything in 02/05 and did not expect anything for 03/05 either.

QUESTION
What is the proper method to count the income in the Public Assistance CalFresh budget?

1) Do we count the income for the three months, divide by three and then enter the average in the CalFresh budget for 02/05 & 03/05? or
2) Do we count the income for 02/05 & 03/05 only, divide by two and then enter the average in the CalFresh budget for 02/05 & 03/05?

ANSWER
The income that is anticipated to be received in the Public Assistance CalFresh payment quarter is the income that is used for the determination of CalFresh benefits. Therefore, the worker shall count the income anticipated for 02/05 & 03/05 only, divide by two, and use the average for 02/05 & 03/05.

PI 2005-17
